

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 14-014

**Amendment to Chapter 4 of Title 1 of the Code of the Chickasaw Nation
(Protecting Seal, Intellectual Property)**

WHEREAS, in accordance with Article VII, Section 4 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, it is necessary to protect the Intellectual Property which belongs to the Chickasaw Nation. Intellectual Property includes, but is not limited to, the Seal of the Chickasaw Nation and other such items which may constitute Trademarks, Servicemarks, or Patents, and

WHEREAS, in order to protect said Intellectual Property, it is necessary to authorize such action by adding certain portions to the Code of the Chickasaw Nation which will grant such authority.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following provisions, to be codified in the Chickasaw Nation Code as indicated, unless it creates a conflict in the numbering system. In which case, only the numbering system will be altered, not the text of the bill:

TITLE 1

CHAPTER 4

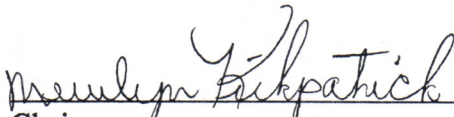
SECTION 1-410 AUTHORITY TO PROTECT SEAL OF THE CHICKASAW NATION

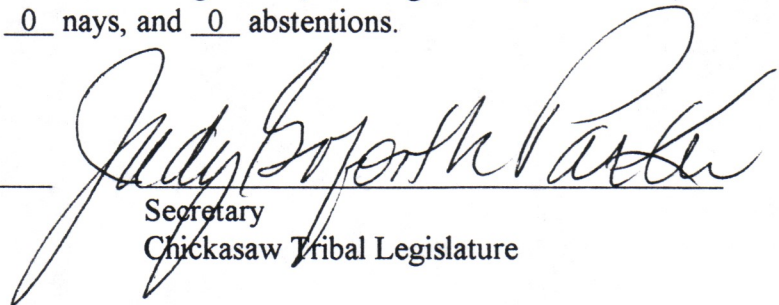
The Governor, Lieutenant Governor, or any member of the Legislature may take appropriate actions to accomplish the protection of the Seal of the Chickasaw Nation. Such actions may include, but will not be limited to, hiring an attorney to file Trademark and or Servicemark Applications with both State and Federal agencies and authorizing protective action as necessary to enforce rights to the mark. As well, activities necessary to expand use of the mark(s) for the general benefit of the Nation are also hereby authorized.

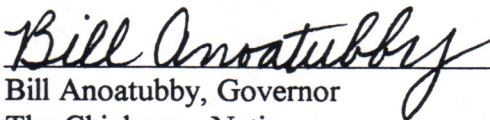
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Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 15, 1997, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 15 1997

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Explanation: This resolution authorizes the Governor, Lieutenant Governor, or any member of the Legislature to take appropriate actions to accomplish the protection of the Seal of the Chickasaw Nation. Such actions may include, but will not be limited to, hiring an attorney to file Trademark and or Servicemark Applications with both State and Federal agencies and authorizing protective action as necessary to enforce rights to the mark. As well, activities necessary to expand use of the mark(s) for the general benefit of the Nation are also hereby authorized.

Requested By: The Legislative Committee

Presented By: Lisa Shephard, Chairman
The Legislative Committee